

**SUBSTITUTE FOR
SENATE BILL NO. 609**

A bill to amend 2020 PA 220, entitled
"Industrial hemp growers act,"
by amending section 107 (MCL 333.29107).

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 107. (1) The industrial hemp fund is created within the
2 state treasury.

3 (2) ~~The~~ **Subject to subsection (6), the** state treasurer may
4 receive the fees collected under section 511 for deposit into the
5 fund. The state treasurer may also receive money or other assets
6 from any other source for deposit into the fund. The state
7 treasurer shall credit to the fund interest and earnings from fund
8 investments.

9 (3) Money in the fund at the close of the fiscal year remains



1 in the fund and does not lapse to the general fund.

2 (4) The department is the administrator of the fund for
3 auditing purposes.

4 (5) The department shall expend money from the fund to
5 establish, operate, and enforce the program.

6 (6) On October 1, 2027, the industrial hemp fund is abolished
7 and any unencumbered balance in the industrial hemp fund at that
8 time must be transferred to the agriculture licensing and
9 inspection fees fund created in section 9 of the insect pest and
10 plant disease act, 1931 PA 189, MCL 286.209.

11 (7) Any information submitted by a former applicant or
12 participant in the program to the department is exempt from
13 disclosure under the freedom of information act, 1976 PA 442, MCL
14 15.231 to 15.246. This subsection does not apply to the disclosure
15 of personal information to a law enforcement agency.

16 Enacting section 1. This amendatory act takes effect February
17 1, 2027.

